BONNEY WATSON

# Who Decides

*The order Washington law sets for who may authorize a cremation, and the two ways to settle it yourself.*

## Someone has to sign

A cremation cannot happen until a person with the legal right to decide has signed for it. Washington law sets out who that is, in order, and it is not always who families expect. If the person at the top is unavailable, the right moves to the next one down.

### THE ORDER WASHINGTON SETS

All of this rests on one Washington law: **RCW 68.50.160**, titled "Right to control disposition of remains." It is short and written in plain English, and you are welcome to read it and check anything here against it.

| | | |
|---|---|---|
| 1 | The person you named in writing yourself | Your own signed and witnessed instructions come first |
| 2 | Your designated agent | Someone you named in a written document, signed and dated in front of a witness. Note that this ranks above a spouse |
| 3 | Your spouse or state registered domestic partner | |
| 4 | A majority of your adult children | A majority, not any one of them. This is where most disputes happen |
| 5 | Your parents | |
| 6 | A majority of your siblings | |
| 7 | A court-appointed guardian | If one was appointed for you at the time of death |

The order above is set out at **RCW 68.50.160(3)**, subsections (a) through (g).

There is one step above all of these. If a person dies while serving in the military, whoever they named on their DD Form 93 comes first.

### YOU CAN SETTLE IT YOURSELF

You do not have to leave this to the list. Washington gives you two ways to decide for yourself, and both of them outrank the family.

#### Put your wishes in writing

Signed by you in front of a witness, this is legal authorization on its own. No family member has to agree to it. The most useful form is to sign the cremation authorization in advance for your own cremation; then we need only one signature from your next of kin afterward rather than the whole family. RCW 68.50.160(1)

#### Make an arrangement and file it with us

The stronger of the two, and almost nobody knows it. A prearrangement that is prepaid, or simply filed with us, **cannot be cancelled or substantially changed by your survivors**. It is not a request. It holds. RCW 68.50.160(2)

So if there is any chance your family will disagree, the surest thing you can do is make the arrangement now. Not a note in a drawer, and not a line in your will, which is usually read after the funeral has already happened. An arrangement is paid for when it's made, in full or on a payment plan, and a prepaid arrangement can't be cancelled or substantially changed by survivors.

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## WHAT SIGNING ACTUALLY MEANS

Signing a cremation authorization is not a formality. The authorizing agent agrees to defend and hold the crematory harmless against claims brought by anyone else who says they had the right to decide. In plain terms: if a relative comes forward angry, the person who signed is the one who answers for it.

None of that is meant to frighten anyone out of signing. Families sign these every day and it is almost always straightforward. But it is a real legal responsibility, taken on by a person in the worst week of their life, usually without anyone explaining what it is. **If you sign your own authorization in advance, the weight of it never lands on them.**

## THREE THINGS FAMILIES ASK

### Is it enough to put it in my will?

No, and this is a common and costly mistake. Wills are usually read days or weeks after the funeral has already taken place. Whatever it says about your wishes will be read too late to matter. Keep it separate, and give us a copy.

### Does being the executor of the estate let me decide?

Not by itself, and it is one of the most common mix-ups. The executor's job is to settle the estate (the property, the accounts, the debts), and that authority usually does not begin until the will has been filed with the court, which is often weeks after the funeral. **Being named executor does not place you on the list.**

Often the executor is also the spouse or one of the adult children, in which case they do have the right, but through that relationship, not through the title. If the person you want deciding is not near the top of that list, the way to give them the authority is to name them your designated agent, a separate signed and witnessed document.

### Can I sign my own cremation authorization ahead of time?

Yes, and it is one of the most useful things you can do. Normally we try to gather signatures from all of your next of kin. If you have already signed your own authorization, we only need one signature from them.

For a family spread across the country, or one that does not agree easily, that difference is enormous.

This guide explains general rules and is not legal advice. The order of priority and the rights described here come from RCW 68.50.160. Laws change and every family's situation is different. For a contested situation, or to be certain a document you have drafted will do what you intend, please speak with an attorney.

## Settle it while it is easy

Putting your wishes on file takes one short conversation, costs nothing, commits you to nothing, and takes the decision off your family entirely. Call or email me and I will walk you through the paperwork.

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